

PROCEDURES RE: MOTIONS TO REDEEM PERSONAL PROPERTY

1. **Contents of Motion.** A written motion must be filed, and must include—
 - a. the secured creditor's name,
 - b. a description of the property to be redeemed,
 - c. the total balance due on the property,
 - d. the current replacement value of the property,
 - e. the amount to be paid to the secured creditor for redemption,
 - f. the date upon which the redemption payment will be made,
 - g. a statement that the property is personal property intended primarily for personal, family, or household use and is secured by a dischargeable consumer debt,
 - h. a statement that that the property is exempted under 11 U.S.C. § 522 or abandoned by the trustee under 11 U.S.C. § 554, and
 - i. any other relevant facts.
2. **Notice of Motion.** The debtor must use the current version of [Local Bankruptcy Form 717.20](#).
3. **Filing and Service of Motion and Notice of Motion.**
 - a. An ECF Participant must use the *Redeem [Requires LBF 717.20 - 12/1/19]* ECF event located under the *Motions/Applications* menu.
 - b. The debtor must serve the motion and notice of motion on the trustee and secured creditor and file them with the clerk.
4. **Objection.** To object to the motion, a party must file the following with the clerk within the time stated in the notice of motion:
 - a. a written objection stating the facts on which the objection is based and
 - b. a certificate of service on the debtor's attorney or, if self-represented, the debtor.
5. **Hearing.** If a timely objection is filed, the court will decide whether a hearing will be required. If so, a notice of hearing will be issued by the clerk.
6. **Failure to Respond.** If no timely objection is filed, the court may sign an order granting the motion.